

		the interest of Defendants in representation by counsel of their choice weighs heavily against disqualification in this case, where trial is approximately four months away. Plaintiffs cite <i>Doe v. Yim</i> for the proposition that the term “trial” as used in Rule 3.7 includes a pretrial evidentiary hearing at which counsel is likely to testify. (See <i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 583.) Here, there is currently no such evidentiary hearing anticipated. The discovery disputes can be resolved, as they routinely are, by way of declarations and argument of counsel. Accordingly, the motion is DENIED. Plaintiffs’ requests for judicial notice are denied as immaterial to the disposition of this motion. Clerk to give notice.
4.	30-2024-01412908 DSC41, LLC vs. ERN Trucking, Inc	1. Motion to Be Relieved as Counsel of Record Michael J. Sachs and Scott D. Nelson, Callahan & Blaine, PC (“Moving Counsel”), move to be relieved as counsel of record for Plaintiff, DSC41, LLC. Moving Counsel has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16 based on a breakdown in communications between the client and Moving Counsel, and the client’s conduct which has made it unreasonably difficult for Moving Counsel to effectively carry out the remainder of this representation. (ROA 79, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.) California Rules of Professional Conduct, Rule 1.16(b)(4) provides that a lawyer may withdraw from representing a client if “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.” Moving Attorney has also utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the notice, declaration, proposed order, and service requirements of California Rules of Court, rule 3.1362. The motion to be relieved as counsel of record is GRANTED. “An attorney may be allowed to withdraw without offending the rule against corporate self-representation.” (<i>Thomas G. Ferruzzo, Inc. v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) However, an entity such as Defendant, Electronic Commerce LLC, cannot represent itself. (<i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 n.5.) Defendant, Electronic Commerce LLC, must obtain representation or risk forfeiting important rights through nonrepresentation. (<i>Ibid.</i>) Plaintiff, DSC41, LLC, is ordered to obtain new counsel, and file evidence thereof with the court within 30 days from the notice. (<i>CLD Constr., Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1150 [“[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].) The Court will sign the proposed order and delete the next scheduled hearing date set forth in paragraph 7(a) which is listed as “May 29, 2026, 9:00 AM, Dept. C34 of the above-entitled court,” as well as the trial date set forth in paragraph 9(b) which is listed as “July 20, 2026, 9:00 AM, Dept. C34 of the above-entitled court.”

		The Court will interlineate the current date for the Mandatory Settlement Conference in paragraph 7(a) which is October 9, 2026, at 9:00 a.m. in Department C34, as well as the current date for the jury trial in paragraph 9(b) which is November 23, 2026, at 9:00 a.m. in Department C34. The order relieving counsel Michael J. Sachs and Scott D. Nelson, Callahan & Blaine, PC as counsel of record for Plaintiff is effective upon Moving Counsel filing proof of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
7.	30-2023-01357282 Merino vs. Pacific Coast Patrol, Inc	1. Motions-Other (to Compel Depo & Enforce Subpoena) <u>Motion to Compel Deposition of Defendant’s Person Most Qualified</u> Plaintiff, Steven Merino (“Plaintiff”), moves for an order compelling the Person(s) Most Qualified (“PMQ”) for Defendant, Pacific Coast Patrol, Inc. (“Defendant” or “Pacific Coast Patrol”) to appear and testify and to produce documents specified in the Third Amended Notice of Deposition, as well as an order awarding sanctions in the amount of \$3,060 against Defendant and its attorneys, Knapp, Petersen & Clarke, including handling attorneys Stephen C. Pasarow, Esq., Kevin J. Slack, Esq. and Asante T. Nkosi, Esq. In compliance with the Court’s July 9, 2026, the parties have met and conferred and filed a Joint Statement. (ROA 243.) Plaintiff has also filed an Amended Separate Statement that includes the objections/response to the at issue Third Amended Notice of Deposition and Request for Production of Documents, albeit for all requests. The Court addresses the merits based on what remains in dispute and the contentions set forth in the Joint Statement. Code of Civil Procedure section 2025.450 provides that a party noticing a deposition “may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc. § 2025.450(a).) A motion to compel under this section “shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450(b)(1).) Good cause is shown through “declarations containing <i>specific facts</i> justifying inspection of the documents described in the notice.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group June 2026 update) ¶ 8:801.2.) If the moving party demonstrates good cause, then the opposing party must justify any objections. (<i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) At issue is the Third Amended Notice of Deposition and Request for Production of Documents which Plaintiff served on November 17, 2025, with a deposition date of December 12, 2025. (Declaration of Erik Fritz, ¶ 12, Ex. G.) Defendant served an objection alleging its agreement to comply, but did not